

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201507338	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/21/2015 11:12 AM	Location of Incident: 84th Road and Main Street	18 Mo. SOL 2/21/2017	Precinct: 107
Date/Time CV Reported Fri, 08/21/2015 10:49 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/31/2015 8:43 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Smith	14747	940747	HWY 03
2. An officer			Unknown

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Smith	Force: PO Gregory Smith pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Gregory Smith	Force: PO Gregory Smith pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Gregory Smith	Abuse: PO Gregory Smith frisked § 87(2)(b)	C . Exonerated
D . POM Gregory Smith	Discourtesy: PO Gregory Smith spoke discourteously to § 87(2)(b)	D . Substantiated
E . An officer	Abuse: An officer questioned § 87(2)(b)	E . Exonerated

Case Summary

This complaint was filed by § 87(2)(b) on behalf of her 13-year old son, § 87(2)(b). § 87(2)(b) did not witness any part of the incident.

On August 21, 2015, at approximately 11:12 a.m., PO Gregory Smith, from Highway 3, stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants on the Van Wyck Expressway and Hillside Avenue in Queens for driving on the shoulder of the highway. § 87(2)(b) fled the scene and PO Smith pursued § 87(2)(b) off the Main Street exit and to the corner of 84th Road. § 87(2)(b) had by then engaged in a vehicle collision and he and § 87(2)(b) fled on foot. PO Smith pursued § 87(2)(b) and § 87(2)(b) on foot and pointed his shotgun at them (**Allegations A and B**). PO Smith also spoke discourteously to § 87(2)(b) and frisked § 87(2)(b) (**Allegations C and D**). An unidentified officer questioned § 87(2)(b) (**Allegation E**).

§ 87(2)(b) was arrested for § 87(2)(b).

(**Board Review 1**).

This case is being submitted after the 90-day benchmark because of delays in attempting to identify other subject officers.

PO Smith was assigned to a marked car with a dashboard camera. A copy of the recording was obtained which captured the incident and some of the allegations. The video recording has audio (**Board Review 3**).



PO Smith dashboard camera.mp4

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- Results regarding a Notice of Claim are pending (**Board Review 4**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This § 87(2)(b) and § 87(2)(b) first CCRB complaint (**Board Review 6**).
- PO Gregory Smith has been a member of the service for 9 years and there are no substantiated CCRB allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

- The investigation was unable to identify the officer who questioned § 87(2)(b) § 87(2)(b). § 87(2)(b) described the subject of this allegation as a white male who had a mole on the left side of his face, near his nose, a black and gray mustache, bushy eyebrows, was bald, and was dressed in uniform. § 87(2)(b) stated that no other officers were nearby when the allegation took place (**Board Review 2**). § 87(2)(b) did not participate in this investigation (**Board Review 7**). § 87(2)(b) stated that numerous officers responded to the scene but they could not describe any of them (**Board Review 8**). PO Smith immediately reported the incident and requested for back up. PO Smith identified some of the officers who responded to the scene; however, none of them matched the description § 87(2)(b) provided of the subject officer (**Board Review 9**). The Event Information shows that there were numerous calls reporting a vehicle accident and that officers from Highway 3, the 107th Precinct, and the 103rd Precinct acknowledged the call (**Board Review 10**).

§ 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A: Force- PO Gregory Smith pointed his gun at § 87(2)(b)

Allegation B: Force- PO Gregory Smith pointed his gun at § 87(2)(b)

Allegation C: Abuse of Authority- PO Gregory Smith frisked § 87(2)(b)

Allegation E: Abuse of Authority- An officer questioned § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) old, who stands 5'3" tall and weighs 168 pounds. § 87(2)(b) stated that he and § 87(2)(b) had gotten into a car accident and that smoke emanated from the car, so he and § 87(2)(b) exited the car and got onto the sidewalk. PO Smith arrived alone approximately one minute later and approached them stating, "Get down on the ground." § 87(2)(b) and § 87(2)(b) complied and lay on their stomachs. PO Smith approached § 87(2)(b) held a shotgun to his forehead, and said, "Do you have anything on you?" § 87(2)(b) replied, "No." PO Smith then approached § 87(2)(b) held the shotgun to his forehead, and asked him, "Do you have anything on you?" § 87(2)(b) replied, "No." PO Smith then patted § 87(2)(b) back and buttocks. When other officers arrived, an unidentified officer approached and handcuffed § 87(2)(b). The unidentified officer escorted § 87(2)(b) near a marked car and asked § 87(2)(b) "Did he (referring to § 87(2)(b)) have any guns or any weed in the car?" § 87(2)(b) responded, "No, he did not." The unidentified officer said, "Okay." (**Board Review 2**).

§ 87(2)(b) and § 87(2)(b) two of the individuals that witnessed the incident from their apartment, did not recall if PO Smith pointed his gun at § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not recall if PO Smith frisked § 87(2)(b) § 87(2)(b) however, § 87(2)(b) corroborated that PO Smith did frisk § 87(2)(b) (**Board Review 8**).

The video footage corroborates that § 87(2)(b) and § 87(2)(b) fled the scene after the start of a vehicle stop, that they engaged in a vehicle accident and that they fled the scene of the vehicle accident. Because § 87(2)(b) and § 87(2)(b) stood on the sidewalk and a parked vehicle is blocking the view, § 87(2)(b) and § 87(2)(b) are not visible in the camera angle upon PO Smith's approach. The video footage shows PO Smith exiting the marked car with his shotgun drawn and pointed as he walks to the sidewalk. The video footage does not feature the alleged frisk and question **(Board Review 3)**.

PO Smith acknowledged pointing his shotgun at § 87(2)(b) and § 87(2)(b). PO Smith stated that he did this because § 87(2)(b) and § 87(2)(b) first fled the scene of a vehicle stop, then PO Smith observed them engage in a car accident and fled the scene of the vehicle accident. PO Smith used his primary weapon, his shotgun, as a precaution because he did not know what was going to happen. PO Smith stood approximately fifteen away and pointed his shotgun at the center mass of § 87(2)(b) and § 87(2)(b) bodies. PO Smith denied pointing his shotgun at § 87(2)(b) and § 87(2)(b) heads. PO Smith immediately called for backup and placed his shotgun away approximately three minutes later, when other officers arrived. Both § 87(2)(b) and § 87(2)(b) were considered under arrest for fleeing the scene of a vehicle accident. PO Smith denied frisking § 87(2)(b) but stated that he must have been frisked because he recalled being told that nothing was found on § 87(2)(b). PO Smith did not see which officer frisked § 87(2)(b) and he did not recall who relayed the information that § 87(2)(b) was frisked. PO Smith was not sure who, but one of the officers escorted § 87(2)(b) to the ambulance while PO Smith escorted § 87(2)(b) to a marked car. PO Smith asked if anyone had searched § 87(2)(b) car and an officer, he did not know who, mentioned that § 87(2)(b) was asked whether there were "guns or weed" in the car and that § 87(2)(b) responded no. PO Smith denied being present during the questioning. PO Smith recalled briefly speaking with § 87(2)(b) and obtaining his pedigree information in which he then determined that § 87(2)(b) was a minor. PO Smith decided to release § 87(2)(b) because he determined that § 87(2)(b) did not have any decision-making in the actions of § 87(2)(b). **(Board Review 09)**.

Sgt. Khazin stated, and his memo book corroborates, that he was not present during the incident **(Board Review 12 and 13)**.

Officers are permitted broad authority to draw and display their weapons when they believe that their safety is in danger. PD v. Gliner, OATH Index 955/00 (2000) **(Board Review 11)**

§ 87(2)(g) the video evidence corroborates PO Smith's statement, § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Although PO Smith denied frisking § 87(2)(b) given the corroboration between § 87(2)(b) and § 87(2)(b) statements, § 87(2)(g) § 87(2)(b) Both § 87(2)(b) and § 87(2)(b) were considered under arrest for numerous actions, including fleeing the scene of a vehicle accident, and PO Smith did

not know that § 87(2)(b) was a minor until after he was frisked and questioned. § 87(2)(b)

(g)

Allegation D: Discourtesy- PO Gregory Smith spoke discourteously to § 87(2)(b)

After being frisked, § 87(2)(b) told § 87(2)(b) “My nephew, get off the ground.” PO Smith said, “Hell no, because you guys should have never been fleeing the scene.” PO Smith repeatedly told § 87(2)(b) “I don’t give a fucking crap about anything that you say.” There were no other officers present **(Board Review 2).**

The video footage confirms that PO Smith repeated, “Get on the ground,” three times before stating, “Get on the fucking ground.” The video footage also confirms that PO Smith made the following discourteous statements: “You want to play fucking games?”, “Who gives a flying fuck if you have to use the bathroom?”, “Yes, I’m pointed a gun at your fucking head because I don’t know what you have on you.”, “I don’t give a flying fuck.” and “I don’t give a shit.” **(Board Review 3)**



Video Clips of Discourtesies.mp4

PO Smith acknowledged using profanity during the incident. While PO Smith stated that his first profane statement, “get on the fucking ground now” was a direct command to § 87(2)(b) and § 87(2)(b) as they ignored his initial commands, PO Smith admitted that the rest of the profanity he used was in response to § 87(2)(b) cursing at him **(Board Review 9).**

Patrol Guide Procedure 203-09 requires that officers be courteous and respectful. Police Department v. Seguinot OATH Index No. 552/00 (2000) held that an officer is permitted to use profanity to forcefully make a point or to gain compliance with an order or direction **(Board Review 11).**

§ 87(2)(g)
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Squad: **11**

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

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Attorney: _____
Title/Signature Print Date